

Details of the Forms required to be filed under The Patents Rules 2003

Number of Entry	On what payable	Number of the relevant Form	For e-filing		For physical filing	
			Natural person(s) or Startup(s) or Small entit(y)/(ies) or educational institution(s)	Other(s), alone or with natural person(s) or Startup(s) or Small entit(y)/(ies) or educational institution(s)	Natural person(s) or Startup(s) or Small entit(y)/(ies) or educational institution(s)	Other(s), alone or with natural person(s) or Startup(s) or Small entit(y)/(ies) or educational institution(s)
1	2	3	4	5	6	7
			Rupees	Rupees	Rupees	Rupees
1.	On application for a patent under sections 7, 54 or 135 and rule 20(1) accompanied by provisional or complete specification— (i) for each sheet of specification in addition to 30, excluding sequence listing of nucleotides and/ or amino acid sequences under sub-rule (3) of rule (9); (ii) for each claim in addition to 10; (iii) for each page of sequence listing of nucleotides and/ or amino acid sequences under sub-rule (3) of rule (9).	1	1600 Multiple of 1600 in case of every multiple priority. (i)160 (ii)320 (iii) 160 subject to a maximum of 24000	8000 Multiple of 8000 in case of every multiple priority. (i)800 (ii)1600 (iii) 800 subject to a maximum of 120000	1750 Multiple of 1750 in case of every multiple priority. (i)180 (ii)350 Not Allowed	8800 Multiple of 8800 in case of every multiple priority. (i)880 (ii)1750 Not Allowed
2.	On filing complete specification after provisional up to 30 pages having up to 10 claims – (i) for each sheet of specification in addition to 30, excluding sequence listing of nucleotides and/ or amino acid sequences under sub-rule (3) of rule (9); (ii) for each claim in addition to 10.	2	No Fee (i)160 (ii)320	No Fee (i)800 (ii)1600	No Fee (i)180 (ii)350	No Fee (i)880 (ii)1750

	(iii) for each page of sequence listing of nucleotides and/ or amino acid sequences under sub-rule (3) of rule (9).		(iii) 160 subject to a maximum of 24000	(iii) 800 subject to a maximum of 120000	Not Allowed	Not Allowed
3.	On filing a statement and undertaking under section 8.	3	No fee	No fee	No fee	No fee
4.	i) On request for extension of time under sections 53(2) and 142(4), rules 13(6), 80(1A) and 130 (per month). ii) On request for extension of time under sub-rule (5) of rule 24B (per month).	4	480	2400	530	2600
		4	1000	4000	1100	4400
	iii) On request for extension of time under sub-rule (11) of rule 24C (per month).	4	2000	10000	2200	11000
5.	On filing a declaration as to inventorship under sub-rule (6) of rule 13.	5	No Fee	No Fee	No Fee	No Fee
6.	On application for postdating	-	800	4000	880	4400
7.	On application for deletion of reference under section 19(2).		800	4000	880	4400
8.	(i) On claim under section 20(1);	6	800	4000	880	4400
	(ii) On request for direction under section 20(4) or 20(5).	6	800	4000	880	4400
9.	(i) On notice of opposition to grant of patent under section 25(2);	7	2400	12000	2600	13200
	(ii) On filing representation opposing grant of patent under section 25(1).	7A	No fee	No fee	No fee	No fee
10.	On giving notice that hearing before Controller shall be attended under rule 62(2).	-	1500	7500	1700	8300
11.	On application under sections 28(2), 28(3) or 28(7).	8	800	4000	880	4400
12.	Request for publication under section 11A(2) and rule 24A.	9	2500	12500	2750	13750

13.	Application for withdrawing the application under section 11B(4), and rules 7(4A) and 26.	29	No Fee	No Fee	No Fee	No Fee
14.	On request for examination of application for patent— (i) under section 11B and rule 24(1); (ii) under rule 20(4)(ii)	18	4000 5600	20000 28000	4400 6150	22000 30800
14A.	On request for expedited examination of application for patent under rule 24C.	18A	8000	60000	Not allowed	Not allowed
14B.	Conversion of the request for examination filed under rule 24B to request for expedited examination under rule 24C.	18A	4000	40000	Not allowed	Not allowed
15	On application under section 44 for amendment of patent.	10	2400	12000	2650	13200
16.	On application for directions under section 51(1) or 51(2).	11	2400	12000	2650	13200
17.	On request for grant of a patent under sections 26(1) and 52(2).	12	2400	12000	2650	13200
18.	On request for converting a patent of addition to an independent patent under section 55 (1).	-	2400	12000	2650	13200
19.	For renewal of a patent under section 53—					
(i)	before the expiration of the 2nd year from the date of patent in respect of 3rd year;	-	800	4000	880	4400
(ii)	before the expiration of the 3rd year in respect of the 4th year;	-	800	4000	880	4400
(iv)	before the expiration of the 4th year in respect of the 5th year;	-	800	4000	880	4400
(v)	before the expiration of the 5th year in respect of the 6th year;	-	800	4000	880	4400
(vi)	before the expiration of the 6th year in respect of the 7th year;	-	2400	12000	2650	13200
(vii)	before the expiration of the 7th year in respect of the 8th year;	-	2400	12000	2650	13200
	before the expiration of	-	2400	12000	2650	13200

	the 8th year in respect of the 9th year;					
(viii)	before the expiration of the 9th year in respect of the 10th year;	-	2400	12000	2650	13200
(ix)	before the expiration of the 10th year in respect of the 11th year;	-	4800	24000	5300	26400
(x)	before the expiration of the 11th year in respect of the 12th year;	-	4800	24000	5300	26400
(xi)	before the expiration of the 12th year in respect of the 13th year;	-	4800	24000	5300	26400
(xii)	before the expiration of the 13th year in respect of the 14th year;	-	4800	24000	5300	26400
(xiii)	before the expiration of the 14th year in respect of the 15th year;	-	4800	24000	5300	26400
(xiv)	before the expiration of the 15th year in respect of the 16th year;	-	8000	40000	8800	44000
(xv)	before the expiration of the 16th year in respect of the 17th year;	-	8000	40000	8800	44000
(xvi)	before the expiration of the 17th year in respect of the 18th year;	-	8000	40000	8800	44000
(xvii)	before the expiration of the 18th year in respect of the 19th year	-	8000	40000	8800	44000
(xviii)	before the expiration of the 19th year in respect of the 20th year.	-	8000	40000	8800	44000
20.	On application for amendment of application for patent or complete specification or other related documents under section 57—	13				
(i)	before grant of patent;		800	4000	880	4400
(ii)	after grant of patent;		1600	8000	1750	8800
(iii)	where amendment is for changing name or address or nationality or address for service		320	1600	350	1750
21.	On notice of opposition to an application under sections 57(4), 61(1) and 87(2) or to surrender a patent under section 63(3) or to a request under section 78(5).	14	2400	12000	2650	13200
22.	On application for	15	2400	12000	2650	13200

	restoration of a patent under section 60.					
23.	Additional fee for restoration under section 61(3) and rule 86(1).	-	4800	24000	5300	26400
24.	On notice of offer to surrender a patent under section 63.	—	1000	5000	1100	5500
25.	On application for the entry in the register of patents of the name of a person entitled to a patent or as a share or as a mortgage or as licensee or as otherwise or for the entry in the register of patents of notification of a document under sections 69(1) or 69(2) and rules 90(1) or 90(2).	16	1600 (In respect of each patent)	8,000 (In respect of each patent)	1750 (In respect of each patent)	8,800 (In respect of each patent)
26.	On application for alteration of an entry in the register of patents or register of patent agents under rules 94(1) or rule 118(1).	—	320	1600	350	1750
27.	On request for entry of an additional address for service in the Register of Patents under rule 94(3).	—	800	4000	880	4400
28.	On application for compulsory license under sections 84(1), 91(1), 92(1) and 92A.	17	2400 12000 2650 13200	12000	2650	13200
29.	On application for revocation of a patent under section 85(1).	19	2400	12000	2650	13200
30.	On application for revision of terms and conditions of licence under section 88(4).	20	2400	12000	2650	13200
31.	On request for termination of compulsory licence under section 94.	21	2400	12000	2650	13200
32.	On application for registration as a patent agent under rule 109(1) or rule 112.	22	3200	Not applicable	3500	Not applicable
33.	On request for appearing in the qualifying examination under rule 109(3).	—	1600	Not applicable	1750	Not applicable

34.	For continuance of the name of a person in the register of patent agents— (i) for the 1st year to be paid along with registration; (ii) for every year excluding the 1st year to be paid on the 1st April in each year	-	800	Not applicable	880	Not applicable
		-	800	Not applicable	880	Not applicable
35.	On application for duplicate certificate of patent agent under rule 111A.	--	1600	Not applicable	1750	Not applicable
36.	On application for restoration of the name of a person in the register of patent agents under rule 117(1).	23	1600 (Plus continuation fee under entry number 34)	Not applicable	1750 (Plus continuation fee under entry number 34)	Not applicable
37.	On a request for correction of clerical error under section 78(2).	—	800	4000	880	4400
38.	On application for review or setting aside the decision or order of the controller under section 77(1)(f) or 77(1)(g).	24	1600	8000	1750	8800
39.	On application for permission for applying patent outside India under section 39 and rule 71(1).	25	1600	8000	1750	8800
40.	On application for duplicate patent under section 154 and rule 132.	—	1600	8000	1750	8800
41.	(i) On request for certified copies under section 72 or for certificate under section 147 and rule 133(1).	—	1000 (up to 30 pages and, thereafter, 30 for each extra page)	5000 (up to 30 pages and, thereafter, 150 for each extra page)	1100 (up to 30 pages and, thereafter, 30 for each extra page)	5500 (up to 30 pages and, thereafter, 150 for each extra page)
	(ii) On request for certified copies under section 72 or for certificate under section 147 and rule 133(2).	--	2400 (up to 30 pages and thereafter, 30 for each extra page)	12000 (up to 30 pages and thereafter, 30 for each extra page)	3300 (up to 30 pages and thereafter, 30 for each extra page)	13200 (up to 30 pages and thereafter, 30 for each extra page)
42.	For certifying office copies, printed each.	—	800	4000	880	4400
43.	On request for inspection of register under section 72, inspection under rule	—	320	1600	350	1750

	27 or rule 74A.					
44.	On request for information under section 153 and rule 134.	—	480	2400	530	2650
45.	On form of authorisation of a patent agent.	26	No Fee	No Fee	No Fee	No Fee
46.	On petition not otherwise provided for.	—	1600	8000	1750	8800
47.	For supplying of photocopies of the documents, per page.	—	10	10	10	10
48.	Transmittal fee for International application.	—	3200	16000	3500	17600
48A	Transmittal fee for International application (for ePCT filing).	—	No Fee	No Fee	Not applicable	Not applicable
49.	For preparation of certified copy of priority document and for transmission of the same to the International Bureau of World Intellectual Property Organization.	—	1000 (up to 30 pages and, thereafter, 30 for each extra page)	5000 (up to 30 pages and, thereafter, 150 for each extra page)	1100 (up to 30 pages and, thereafter, 30 for each extra page)	5500 (up to 30 pages and, thereafter, 150 for each extra page)
49A.	For preparation of certified copy of priority document and e-transmission through WIPO DAS.	--	No fee	No fee	Not applicable	Not applicable
50.	On statement regarding working of a patented invention on a commercial scale in India under section 146(2) and rule 131(1).	27	No fee	No fee	No fee	No fee
51.	To be submitted for claiming the status of a small entity or startup	28	No fee	No fee	No fee	No fee
52.	Request for adjournment of hearing under rule 129A (for each adjournment).	-	1000	5000	1100	5500
53	Miscellaneous form under rule 8(2), to be used when no other form is prescribed.	30	As applicable			

LIST OF FORMS
(The Patents Rules 2003)

Form No.	Section and rule	Title
1	2	3
1.	Sections 7, 54 and 135 and rule 20(i).	Application for grant of a patent.
2.	Section 10; rule 13.	Provisional/ Complete Specification.
3.	Section 8 and rule 12.	Statement and undertaking.
4.	Sections 53(2) and 142(4), rules 13(6), 24B(4) (ii), 80(1A) and 130.	Request for extension for time.
5.	Section 10(6) and rule 13(6).	Declaration as to inventorship.
6.	Sections 20(1), 20(4), 20(5) and rules 34(1), 35(1) or 36(1).	Claim or request regarding any change in applicant for patent.
7.	Section 25(3) and rule 55A.	Notice of opposition on grant of a patent.
7A.	Section 25(1) and rule 55(1)	For filing a representation opposing grant of a patent under sub-section (1) of section 25.]
8.	Sections 28(2), 28(3) or 28(7) and rules 66, 67, 68.	Request or claim regarding mention of inventor as such in a patent.
9.	Section 11A(2) and rule 24A.	Request for publication.
10.	Section 44 and rule 75.	Application for amendment of patent.
11.	Sections 51(1), 51(2) and rules 76, 77.	Application for direction of the Controller.
12.	Sections 26(1) & 52(2) and rules 63A and 79.	Request for grant of patent.
13.	Section 57 and rule 81(1).	Application for amendment of the application for patent/ complete specification.
14.	Sections 57(4), 61(1), 63(3), 78(5) and 87(2) and rules 81(3)(b), 85(1), 87(2), 98(1), 101(3) or 124	Notice of opposition to amendment/ restoration/ surrender of patent/ grant of compulsory licence or revision of terms thereof or to a correction of clerical errors.

15.	Section 60 and rule 84.	Application for restoration of patents.
16.	Sections 69(1) or 69(2) and rules 90(I) and 90(2).	Application for registration of a title/interest in a patent or share in it or registration of any document purporting to affect proprietorship of the patent.
17.	Sections 84(1), 91, 92 or 92(A) and rule 96.	Application for compulsory licence.
18.	Section 11B and rules 20(4)(ii) and 24B(I)(i).	Request for examination of application for patent.
19.	Section 85(1) and rule 96.	Application for revocation of a patent for non-working.
20.	Section 88(4) and rule 100.	Application for revision of terms and conditions of licence.
21.	Section 94, rule 102(1).	Request for termination of compulsory licence.
22.	Rules 109(1) and 112.	Application for registration of Patent Agent.
23.	Section 130(2) and rule 117(1).	Application for the restoration of the name in the register of Patent Agents.
24.	Sections 77(1)(f), 77(1)(g) and rules 130(1) and 130(2).	Application for review / setting aside controller's decision/ order.
25.	Section 39 and rule 71(1).	Request for permission for making patent application outside India.
26.	Sections 127, 132 and rule 135.	Form of authorisation of a Patent Agent/ or any person in a matter or proceeding under the Act.
27.	Section 146(2) and rule 131(1).	Statement regarding the working of the Patented invention on commercial scale in India.
28.	Rules 2(fa) and 7	To be submitted by a small entity with every document for which a fee has been specified.
29.	Section 118(4) and rules 7(4A), 24C(5) and 26	Request for withdrawal of patent application
30.	Rule 8(2)	Miscellaneous form, to be used when no other form is prescribed

THE SECOND SCHEDULE

(See rule 8)

FORMS**LIST OF FORMS**

Form No.	Section and rule	Title
1	2	3
1.	Sections 7, 54 and 135 and rule 20(i).	Application for grant of a patent.
2.	Section 10; rule 13.	Provisional/Complete Specification.
3.	Section 8 and rule 12.	Statement and undertaking.
4.	Sections 53(2) and 142(4), rules 13(6), 24B(4)(ii), 80(1A) and 130.	Request for extension for time.
5.	Section 10(6) and rule 13(6).	Declaration as to inventorship.
6.	Sections 20(1), 20(4), 20(5) and rules 34(1), 35(1) or 36(1).	Claim or request regarding any change in applicant for patent.
7.	Section 25(3) and rule 55A.	Notice of opposition on grant of a patent.
7A.	Section 25(1) and rule 55(1)	For filing a representation opposing grant of a patent under sub-section (1) of section 25.
8.	Sections 28(2), 28(3) or 28(7) and rules 66, 67, 68.	Request or claim regarding mention of inventor as such in a patent.
9.	Section 11A(2) and rule 24A.	Request for publication.
10.	Section 44 and rule 75.	Application for amendment of patent.
11.	Sections 51(1), 51(2) and rules 76, 77.	Application for direction of the Controller.
12.	Sections 26(1) & 52(2) and rules 63A and 79.	Request for grant of patent.
13.	Section 57 and rule 81(1).	Application for amendment of the application for patent/complete specification.

1	2	3
14.	Sections 57(4), 61(1), 63(3), 78(5) and 87(2) and rules 81(3)(b), 85(1), 87(2), 98(1), 101(3) or 124	Notice of opposition to amendment/restoration/surrender of patent/grant of compulsory licence or revision of terms thereof or to a correction of clerical errors.
15.	Section 60 and rule 84.	Application for restoration of patents.
16.	Sections 69(1) or 69(2) and rules 90(1) and 90(2).	Application for registration of a title/interest in a patent or share in it or registration of any document purporting to affect proprietorship of the patent.
17.	Sections 84(1), 91, 92 or 92(A) and rule 96.	Application for compulsory licence.
18.	Section 11B and rules 20(4)(ii) and 24B(1)(i).	Request for examination of application for patent.
19.	Section 85(1) and rule 96.	Application for revocation of a patent for non-working.
20.	Section 88(4) and rule 100.	Application for revision of terms and conditions of licence.
21.	Section 94, rule 102(1).	Request for termination of compulsory licence.
22.	Rules 109(1) and 112.	Application for registration of Patent Agent.
23.	Section 130(2) and rule 117(1).	Application for the restoration of the name in the register of Patent Agents.
24.	Sections 77(1)(f), 77(1)(g) and rules 130(1) and 130(2).	Application for review/setting aside controller's decision/order.
25.	Section 39 and rule 71(1).	Request for permission for making patent application outside India.
26.	Sections 127, 132 and rule 135.	Form of authorisation of a Patent Agent/ or any person in a matter or proceeding under the Act.
27.	Section 146(2) and rule 131(1).	Statement regarding the working of the Patented invention on commercial scale in India.
28.	Rules 2(fa) and 7	To be submitted by a small entity with every document for which a fee has been specified.

"29.	Section 11B(4) and rules 7(4A), 24C(5) and 26	Request for withdrawal of patent application
30.	Rule 8(2)	Miscellaneous form, to be used when no other form is prescribed.”.

THE FOURTH SCHEDULE

[See proviso to rule 136(1)]

Number of entry	Matter in respect of which cost to be awarded	Amount in fees (in rupees)		
		For natural person(s)	For person other than natural person(s) either alone or jointly with natural person (s)	
			For small entity	For others except small entity
1	2	3	4	5
1	For notice of opposition under sections 25, 57, 60, 63, 78, 87(2) or 88(4).	2400	6000	12000
2	For application for compulsory licence under sections 84(1), 91(1) or 92(1).	1500	3000	6000
3	For application for revision of terms and conditions of licence under section 88(4) .	2400	6000	12000
4	For notice of intention to attend the hearing under rule 62(2).	1500	3000	6000
5	Stamp fee for power of attorney where a patent agent or other person has been appointed or stamp fee in respect of relevant affidavits.	The amount actually paid.	The amount actually paid.	The amount actually paid.

6	For written statement under rule 57 or reply statement under rule 58 or for each affidavit, if relevant.	4000	4000	5000
7	For each document of publication produced in the proceedings, if relevant	1600	1600	2000
8	For each unnecessary or irrelevant affidavit or citation.	1600	1600	2000
9	For every day or part day of hearing before the Controller.	4000	4000	5000

"THE FIFTH SCHEDULE

[See rules 19(2), 19A(1)(b), 19B(5),19B(12), 19H, 19K(5)]

Sl. No.	On what payable (Relevant provision of Patents Rules, 2003, if any)	Relevant Rule of regulations under the Treaty	For Natural Person	Other than natural person either alone or jointly with natural person
(1)	(2)	(3)	(4)	(5)
			(In Rupees)	(In Rupees)
1.	Search fee	Rule 16.1(a)	2500	10000
2.	Additional fee under rule 19B (5)	Rule 40.2	2500	10000
3.	Protest fee under rules 19B (5) and 19J(5)	Rules 40.2(e) and 68.3(e)	1000	4000
4.	Preliminary examination fee	Rule 58.1	3000	12000
5.	Additional fee under rule 19J(5)	Rule 68.3	3000	12000
6.	Preliminary examination fee, if the International Search Report was prepared by the Indian International Searching Authority		2500	10000
7.	Additional fee under rule 19J(5), if the International Search Report was prepared by the Indian International Searching Authority		2500	10000
8.	Handling fee to be paid to be IB	Rule 57	As specified in the schedule of fee annexed to the regulations made under the Treaty	
9.	Late furnishing fee	Rule 13ter.1(c),1 3ter.2, 12.3(e), 12.4(e)	1000	4000
10.	Late payment fee	Rule 58bis.2, 16bis.2	In accordance with the regulations made under the Treaty	
11.	Copy of Results of Earlier Search and of Earlier Application	12bis.1(c)	1000	4000"